

ELEVATE MARKETING SOLUTIONS SERVICES AGREEMENT

This Marketing Services Agreement ("Agreement") is made and entered into as of April 29, 2022, by and between:

UrbanWind Technologies, Inc., a Delaware corporation with its principal place of business at 1234 Innovation Dr. Suite 500, San Francisco, CA 94103 ("Client"), and

Elevate Marketing Solutions, a Colorado limited liability company with its principal place of business at 4420 Firebreak Rd, Suite 23, Boulder, CO ("Agency").

1. SERVICES:

Agency shall provide the following marketing services to Client (collectively, the "Services"):

- **Marketing Strategy Development:**
 - **Market Research and Analysis:** Conduct comprehensive market research to identify target audiences, competitive landscape, and industry trends.
 - **Marketing Plan:** Develop a detailed marketing plan outlining goals, strategies, tactics, timelines, and budget allocations.
 - **Brand Positioning:** Refine and articulate Client's brand positioning, messaging, and value proposition.
- **Advertising Campaign Management:**
 - **Campaign Development:** Create and execute advertising campaigns across various channels, including but not limited to:
 - Digital Advertising (Google Ads, social media ads, display advertising)
 - Print Advertising (magazines, newspapers, trade publications)
 - Content Marketing (blog posts, articles, whitepapers)
 - Video Marketing (production and distribution)
 - **Media Planning and Buying:** Research, negotiate, and purchase advertising space and placements.
 - **Campaign Tracking and Reporting:** Monitor campaign performance, track key metrics, and provide regular reports to Client.
- **Public Relations (PR):**
 - **Media Relations:** Develop and maintain relationships with relevant media outlets and journalists.
 - **Press Release Development and Distribution:** Write and distribute press releases to announce company news, product launches, and other noteworthy events.
 - **Media Training:** Provide media training to Client's spokesperson(s).
 - **Crisis Communications:** Develop and implement crisis communication plans to manage and mitigate negative publicity.
- **Website Design and Development:**
 - **Website Design:** Create a visually appealing and user-friendly website design that aligns with Client's brand identity.
 - **Website Development:** Develop a functional website with features such as:

- Responsive design for optimal viewing on all devices
- Content management system (CMS) for easy updates
- Search engine optimization (SEO) to improve visibility
- Lead generation forms and calls-to-action
- **Website Maintenance:** Provide ongoing website maintenance and updates.

2. SCOPE OF WORK (SOW):

The specific scope of work for each project under this Agreement will be detailed in separate Statements of Work ("SOWs"). Each SOW will be mutually agreed upon by both parties and will include:

- **Project Description:** A detailed description of the project, including objectives, deliverables, and timelines.
- **Budget:** A breakdown of the estimated costs for the project, including Agency fees and any out-of-pocket expenses.
- **Payment Schedule:** A schedule outlining the timing of payments for the project.
- **Acceptance Criteria:** The criteria that will be used to determine whether the project deliverables have been successfully completed.

3. FEES AND PAYMENT:

- **Fees:** Client shall pay Agency fees for the Services as set forth in each SOW. The total annual fees for the Services shall not exceed fifty thousand dollars (\$4,500.00) per month, unless otherwise agreed to in writing by the parties.
- **Payment Terms:** Invoices for Services will be issued upon completion of each milestone outlined in the applicable SOW and are payable net 30 days from the date of invoice.
- **Expenses:** Client will reimburse Agency for reasonable out-of-pocket expenses incurred in connection with the Services, as detailed in each SOW. Reimbursable expenses may include, but are not limited to, travel expenses, advertising costs, and software subscriptions.

4. TERM AND TERMINATION:

- **Term:** This Agreement shall commence on [Start Date] and shall continue for a period of one (1) year. The Agreement shall automatically renew for additional one (1) year terms unless either party provides written notice of non-renewal at least sixty (60) days prior to the end of the then-current term.
- **Termination for Cause:** Either party may terminate this Agreement for cause upon thirty (30) days' written notice to the other party if the other party materially breaches this Agreement and fails to cure such breach within the thirty (30) day notice period.
- **Termination for Convenience:** Either party may terminate this Agreement for convenience upon ninety (90) days' written notice to the other party. In the event of termination for convenience, Client shall pay Agency for all Services rendered up to the date of termination, plus any non-cancellable expenses incurred by Agency.

5. OWNERSHIP OF WORK PRODUCT:

Upon full payment of all fees and expenses due under this Agreement, all work product created

by Agency in connection with the Services, including but not limited to marketing materials, website content, and PR materials, shall become the exclusive property of Client. Agency shall retain a non-exclusive, royalty-free license to use the work product for its portfolio and promotional purposes.

6. CONFIDENTIALITY:

- **Definition:** "Confidential Information" means any and all non-public information disclosed by one party ("Disclosing Party") to the other party ("Receiving Party"), whether orally, in writing, or in any other form, that is designated as confidential or that, by the nature of the circumstances surrounding the disclosure, ought to be treated as confidential.
- **Non-Use and Non-Disclosure:** The Receiving Party shall not use any Confidential Information of the Disclosing Party for any purpose other than as necessary to perform its obligations under this Agreement. The Receiving Party shall not disclose any Confidential Information of the Disclosing Party to any third party without the Disclosing Party's prior written consent.
- **Exceptions:** The obligations of confidentiality set forth in this Section 6 shall not apply to any information that: (i) is or becomes publicly known through no act or fault of the Receiving Party; (ii) was rightfully in the Receiving Party's possession prior to its disclosure by the Disclosing Party; (iii) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information; or (iv) is required to be disclosed pursuant to a court order, law, or regulation.

7. REPRESENTATIONS AND WARRANTIES:

- **Agency:** Agency represents and warrants that it has the necessary skills, experience, and resources to provide the Services in a professional and timely manner. Agency further represents and warrants that the Services will be performed in accordance with all applicable laws and regulations.
- **Client:** Client represents and warrants that it has the right to enter into this Agreement and that it will provide Agency with all necessary information and cooperation to enable Agency to perform the Services.

8. INDEMNIFICATION:

Each party (the "Indemnifying Party") shall indemnify, defend, and hold harmless the other party (the "Indemnified Party") from and against any and all claims, damages, liabilities, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or in connection with any breach of the Indemnifying Party's representations, warranties, or obligations under this Agreement.

9. LIMITATION OF LIABILITY:

IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOST PROFITS, LOST DATA, OR BUSINESS INTERRUPTION, ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT, WHETHER IN CONTRACT, TORT, OR OTHERWISE, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

10. GOVERNING LAW:

This Agreement shall be governed by and construed in accordance with the laws of the State of Colorado, without regard to its conflict of laws provisions.

11. DISPUTE RESOLUTION:

Any dispute arising out of or in connection with this Agreement shall be resolved through binding arbitration in accordance with the rules of the American Arbitration Association. The arbitration shall be conducted in Boulder, Colorado, and the language of the arbitration shall be English.

12. ENTIRE AGREEMENT:

This Agreement constitutes the entire agreement between the parties and supersedes all prior or contemporaneous communications and proposals, whether oral or written, with respect to the subject matter hereof.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

URBANWIND TECHNOLOGIES, INC.

By:

A handwritten signature in black ink that reads "Elena Rodriguez". The script is cursive and fluid.

Name: Elena Rodriguez

Title: CEO

ELEVATE MARKETING SOLUTIONS

By:

A handwritten signature in black ink, reading "Hiromi Miyazaki". The script is fluid and cursive, with the first name "Hiromi" and last name "Miyazaki" clearly distinguishable.

Name: Hiromi Miyazaki

Title: President, CEO